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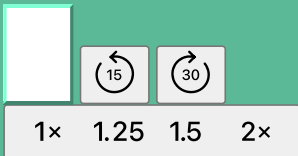
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Appeals Court: Yes, Suing The Family Of People You Killed In A Car Crash For Defamation Is A SLAPP Suit



from the *anti-slapp-ftw* dept
Mon, Jan 13th 2025 08:01pm - [Mike Masnick](#)

This one is from a couple months ago, but I finally had a chance to catch up on some older stories. In late 2023, we wrote about [one of the most egregious SLAPP suits](#) we'd ever seen. In a case that seems to defy both law and basic human decency, King Vanga, a Stanford student, got into a car accident that resulted in the deaths of Pamela and Jose Juarez. But that was just the start of a legal saga that would leave any reasonable person scratching their head in disbelief.

You see, Vanga later sued members of the Juarez family for... speaking out angrily about the accident that left their loved ones dead.

Talk about adding insult to injury.

It's a move so brazen, so devoid of compassion, that it almost defies belief. But believe it, because it happened, and it's a stark reminder of the ways in which our legal system can be weaponized against the very people it's meant to protect.

And, thankfully (if too late in the process), it's also a stark reminder of the importance of a strong anti-SLAPP law, like California's, that has now righted this wrong. This case is not just an affront to decency, it's a textbook example of why we need robust anti-SLAPP protections to prevent the legal system from being abused to silence and intimidate victims.

Here's how [the local news](#) reported on the original accident:

The California Highway Patrol says Pam, 56, and Joe, 57, were driving west on Santa Fe Avenue approaching Spaceport Entry in Atwater.

They were just minutes away from their son's house.

Officials say that's when 20-year-old King Vanga collided into the back of their car at a high rate of speed.

The Juarez's spun out and their vehicle caught fire.

Vanga overturned into a fence.

The Juarez's died at the scene.

Vanga had minor injuries was booked into the Merced County Jail for driving under the influence of drugs and/or alcohol and vehicular manslaughter.

The police report on the matter suggested that Vanga was driving under the influence:

VANGA, KING VIVEK

1. LOCATION:	4. NOTIFICATION INTERVIEW:	7. PSYCHOPHYSICAL:	10. STATEMENTS:
2. WITNESS:	5. INITIAL OBSERVATION:	8. CLINICAL INDICATORS:	11. DRE'S OPINION:
3. BAC:	6. MEDICAL PROBLEMS:	9. SIGNS OF INGESTION:	12. TOXICOLOGICAL:
			13. MISCELLANEOUS:

Drug Recognition Evaluation (DRE) Report/Narrative

Location:

The DRE evaluation was conducted at Mercy Medical Center in Merced.

Witness:

California Highway Patrol Officer A. Calderon, #21530.

BAC:

The subject did not complete a PAS sample.

Notification Interview:

On June 25, 2021, at approximately 2143 hours, Officer A. Calderon, ID 21530, and I responded to report of a vehicle fully engulfed in flames on Santa Fe Drive at Spaceport Entry. As we responded, Merced Communication Center (MCC) advised Atwater Police Department Officers were on scene, involved in a physical altercation with the subject (use of force), and had detained the subject (later identified as Vanga). This was not a vehicle fire as reported, it was determined to be a two-vehicle traffic collision. In addition, Merced County Sheriff's Office (MCSO) Deputies were on scene and advised the occupants in the fully engulfed vehicle were pronounced deceased. Officer A. Fuentes, ID 20156, arrived on scene and contacted the party in the back of an Ambulance while he was being treated for his injuries. Officer Fuentes was unable to administer any Field Sobriety Test due to his sustained injuries. Officer Fuentes observed signs and symptoms of alcohol/drug impairment and placed the subject under arrest for violation of 23153(a) VC, 192(c)(1) PC. Officer Fuentes informed me the following information: the subject was the proximate cause of a fatal traffic collision, he detected a strong odor of an alcoholic beverage emitting from his breath and person, displayed bruxism, had an elevated pulse, was fidgety, and his attention was constantly divided. Officer Fuentes requested I remained with the subject on scene, follow the ambulance to the hospital in the patrol vehicle, and attempt to conduct a DRE evaluation on the subject while at the Hospital.

Initial Observation:

Upon contacting the subject in the back of the ambulance, I observed bruxism. The subject was also fidgety. I detected a strong odor of an alcoholic beverage emitting from his person. In addition, I observed the subject was placed on monitors in the back of the ambulance which measured his pulse and blood pressure. I observed the subject's pulse was elevated at 171 bpm and his blood pressure was at 141/80. The subject's eyes were red and watery. The subject was transported by ambulance to Mercy Medical Center in Merced and I followed the ambulance to the hospital in a patrol vehicle. While at the hospital, I re-contacted the subject. I detected a strong odor of alcoholic beverage emitting from his breath and person and observed his eyes were red.

Vanga [later sued the police](#), claiming he never drinks. And, a later blood test did not show any traces of alcohol in his blood. While this casts some doubt on the initial police assessment, it doesn't change the tragic outcome of the accident.

Based on the police report and local news reporting, some of Juarez's extended family sent letters to Stanford, understandably upset and repeating some of the claims in the news and police reports to alert the school to what one of their students was accused of doing. There is no indication that Stanford did anything at all in response.

Yet, somewhere along the way, Vanga requested his student records, found the letters, and then (shockingly) [sued some of the family members](#), claiming that their letters to Stanford were defamatory.

Yes, let's repeat that for emphasis: this student got into a car accident that left a husband and wife dead... and then when he found out that some of their grieving family members had sent letters with publicly reported details about the accident, he sued them for defamation. It's hard to imagine a more callous response in the wake of such a tragedy.

That seems like a quintessential SLAPP. And yet... the California court that heard the case did not grant the anti-SLAPP motion. Fortunately, on appeal, [a California state appeals court has reversed that](#). The court rightly found that the letter sent by Priscilla Juarez (a daughter-in-law of the deceased couple) was clearly not defamatory. The court noted that the comments were clearly her opinion based on disclosed facts from sources like the media and the police report.

This is a crucial distinction. If simply repeating already public information in an angry letter or email opened people up to defamation suits, it would have a massive chilling effect on speech, especially speech by crime victims and their families. The appeals court recognized this and rightly concluded that Vanga's suit was a SLAPP.

Juarez's pro bono lawyer in all this was Ken White of Popehat fame, who has written up [his own thoughts on this mess of a case](#). It includes that Vanga's lawyers had effectively demanded that the Juarez family remove any public conversation about Vanga at all:

Mr. Vanga will not pursue a lawsuit against your for defamation if you agree to the following terms:

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2. You agree to remove any online statements that you have published that refer to Mr. Vanga;
3. You agree not to make or publish any disparaging statements about Mr. Vanga in the future, subject to certain required public policy exceptions;
4. You agree not to encourage, assist, or advise others to make or publish disparaging statements about Mr. Vanga in the future, subject to certain required public policy exceptions;
5. You agree not to encourage the criminal prosecution of Mr. Vanga, including by communicating with government officers or protesting at any conference, hearing, or trial involving Mr. Vanga, except as necessary for you to provide evidence, to provide testimony, to assist with a government investigation, or subject to other required public policy exceptions.

Can you imagine? This guy gets into a car accident that kills a beloved couple in your family, and then you get threatened by the guy (and eventually sued) for... talking about what happened.

It's nuts.

As White notes, this is why anti-SLAPP laws are so important:

On November 19th, 2024, the California Court of Appeal reversed in one of the most strongly-worded anti-SLAPP appellate rulings I've seen, linked above. The Court noted that Priscilla Juarez' letter expressly based her statements on the criminal complaint, statements from law enforcement officers, and press coverage that she had seen, and that she did not suggest she had some personal knowledge or undisclosed basis for the statements. The Court examined the context, concluding that Stanford was unlikely to interpret the letter as asserting facts rather than the victims' relative's angry reaction to events in the news. "Accordingly, considering both the language and the context of Defendant's email, we find the assertions that Plaintiff murdered the decedents, drove while intoxicated, and violated Stanford's Code of Conduct to be opinions based on disclosed facts. The opinions are therefore actionable only if those facts are false." (Attached Order at 15.) Moreover, Plaintiff's claim that the police and witnesses were wrong is irrelevant — the key is that it's undisputed that the police and witnesses reported those things and Ms. Juarez based her opinions on those reports. The Court found that Vanga had not offered any evidence that he suffered any pain or suffering from another statement, and therefore didn't carry his anti-SLAPP burden of showing he could prevail.

It's easy to see why this is important. Under King Vanga's theory — which the lower court accepted — it would be impossibly dangerous for crime victims to speak to the press — or to anybody. If a defendant in a criminal case can sue alleged victims for making statements based explicitly on police reports and on the charges against the defendant, then criminal defendants can silence their victims by threat of defamation lawsuits. In fact defendants will be able to use the threat of lawsuits to attack witnesses and disrupt their prosecution. The danger is not abstract or a slippery slope. It was directly presented here. King Vanga's lawyers demanded that, as a price for not being sued, Priscilla Juarez not only stop talking in public about King Vanga, but not "encourage the criminal prosecution of Mr. Vanga, including by communicating with government officers or protesting at any conference, hearing, or trial involving Mr. Vanga." I remain shocked that an attorney would do such a grotesque thing. I submit that these facts show that the lawsuit was not motivated by any actual harm suffered by Vanga, but was a naked attempt to bully a grieving family into silence through abuse of the legal system.

Allowing lawsuits like this would have a severe chilling effect on the speech of crime victims and their families. It would enable perpetrators to bully victims into silence through legal intimidation.

This case, while egregious, is not an isolated incident. It's part of a disturbing trend of the legal system being weaponized to silence and harass, which is exactly why strong anti-SLAPP protections are so essential.

Cases like this underscore the vital importance of robust anti-SLAPP protections. Without such laws, those who cause harm can exploit the legal system to compound the suffering of those they've already victimized. It's a perverse outcome that laws like California's anti-SLAPP statute aim to prevent.

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King Vanga v

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glenn

January 13, 2025 at 9:38 pm



Crash? yes. Accident? Apparently not, according to the killer, who says he never drinks (really?). So, it was intentional? That would make this murder instead of manslaughter.

(Crashes are seldom “accidents,” which is not the same thing being intentional. Almost all of them are avoidable. All that’s really required is for a driver to be paying attention to the task at hand, which is apparently too much for some... even when sober.)

So, sober means murder. Intoxicated means “accident.” He’d be smarter to go with the latter (if DAs always did their jobs).

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mcinsand

January 14, 2025 at 6:02 am

Re: Thank you so much!

So, sober means murder. Intoxicated means “accident.”

The thing about drinking being relevant got under my skin, and you summed up the wrinkle perfectly! When I read the article, I got wrapped around the thought of what if he wasn’t drinking. Would his behavior have been worse just because my gut said it was, and you summed things up perfectly!

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nasch ([profile](#))

January 14, 2025 at 8:10 am

INSIDER

Re:

Here are some definitions of “accident”:

an unfortunate incident that happens unexpectedly and unintentionally, typically resulting in damage or injury.

an event that happens by chance or that is without apparent or deliberate cause.

an unforeseen and unplanned event or circumstance

lack of intention or necessity

an unfortunate event resulting especially from carelessness or ignorance

None of them mention the event being unavoidable. I don’t understand this aversion to referring to accidental events such as car crashes or negligent gun discharges as accidents. An accident doesn’t mean nobody is at fault, or nothing could have been done better. It just means it wasn’t intentional.

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Anonymous Coward

January 14, 2025 at 9:02 am

Just because your error was negligence, doesn't make the result intentional. Murder as a crime definitionally implies intent.

Not paying attention gets you vehicular homicide. Murder in the jurisdictions I am familiar with requires provable intent, and 'he wasn't paying close enough attention' doesn't get you that.

Defining accident incredibly narrow and murder incredibly broadly isn't insightful pedantry. Its shallow emotionally motivated reasoning.

Its still murder if the guy was intoxicated. He intentionally drove when he was not safe to drive. By your definition its not an accident. I argue its worse to claim being negligent while sober is murder, but being so negligent as to drive while drunk is an accident undermines your entire argument.

It is a condemnation of the state of our society that you get voted insightful for this logical turd.

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[2]



Whoever January 14, 2025 at 9:15 am

Re: "Accident"

As ever, the wonderful Hot Fuzz has a relevant quote:

[Sergeant Angel has told Danny Butterman that Official Vocabulary no longer refers to car crashes as accidents: They are now called collisions]
Danny Butterman: Hey, why can't we say "accident," again?
Nicholas Angel: Because "accident" implies there's nobody to blame.

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That One Guy (profile) January 14, 2025 at 1:29 am



INSIDER

Nice own-goal scumbag

Vanga later sued the police, claiming he never drinks. And, a later blood test did not show any traces of alcohol in his blood. While this casts some doubt on the initial police assessment, it doesn't change the tragic outcome of the accident.

'I didn't slam into the back of their vehicle with such incredible speed that it caused a wreck that killed both the driver and passenger because I was drunk, I did it stone-cold sober and therefore I was speeding that fast deliberately' is not the defense that vile waste of flesh seems to think it is.

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[2]



David January 14, 2025 at 1:41 am

Re:

'I didn't slam into the back of their vehicle with such incredible speed that it caused a wreck that killed both the driver and passenger because I was drunk, I did it stone-cold sober and therefore I was speeding that fast deliberately' is not the defense that vile waste of flesh seems to think it is.

He doesn't need a criminal defense since apparently the requisite trial is over and it would be double jeopardy to charge him again.

There might be an opening for damages in a civil trial. And of course his statement that he killed two



Anonymous Coward January 14, 2025 at 3:46 am

Re: Re:

Double jeopardy only means Vanga can't be tried again on the vehicular manslaughter charge. If the DA takes him at his word that he was sober at the time of the crash and uses the later clean blood test result as evidence, they can charge him with vehicular homicide.



nasch (profile) January 14, 2025 at 8:20 am

INSIDER

Re: Re: Re:

Prosecutors don't get to try again with a different law if the defendant is acquitted.



Anonymous Coward January 14, 2025 at 8:58 am

Re: Re: Re:²

Prosecutors don't get to try again with a different law if the defendant is acquitted.

Yes, they do indeed. The most famous case is that of Al Capone being convicted of tax evasion when in fact they couldn't secure a conviction for all of the illegal acts he was claimed to have committed. Different laws, but Capone went up the river anyway.

And if you care to look, you'll find that the term "fresh evidence" is a thing. Prosecutors re-try a suspected criminal all the time due to "previously undisclosed evidence directly bearing on the case at bar". In short, there's no such thing as admitting to the crime after a jury didn't convict you and the case was dismissed. You can, and likely will be, re-tried for having disclosed previously undisclosed information having a direct bearing on the case. (Unless you wait for the Statute Of Limitations to run out, then you're safe to brag all you want.)



Whoever January 14, 2025 at 9:20 am



Re: Re: Re:³ Double jeopardy

Yes, they do indeed. The most famous case is that of Al Capone being convicted of tax evasion when in fact they couldn't secure a conviction for all of the illegal acts he was claimed to have committed. Different laws, but Capone went up the river anyway.

And if you care to look, you'll find that the term "fresh evidence" is a thing. Prosecutors re-try a suspected criminal all the time due to "previously undisclosed evidence directly bearing on the case at bar".

Only after a person who was previously found guilty is successfully able to have the courts throw out the prior conviction and trial. People found not guilty do not have the prior trial result thrown out.

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[7]



Anonymous Coward January 14, 2025 at 9:46 am

Re: Re: Re:⁴

He wasn't tried for the same acts. He was tried for different acts (tax evasion, vs. extortion, etc.).

He made money from that extortion, and failed to claim taxes on that money. That's a link that was proven in court, and thus he earned an orange suit of clothes, somewhat directly due to that extortion.

Only after a person who was previously found guilty is successfully able to have the courts throw out the prior conviction and trial. People found not guilty do not have the prior trial result thrown out.

Sounds to me like you got your law degree from the University of YouTube. I advise you to stop here because you're now pissing up a rope. But I am no longer a lawyer, nor have I ever played one on TV, so feel free to do as you wish. But I won't be back, I have better things to do with the few remaining years of my life than teach young whippersnappers how the law works.

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[8]



nasch (profile) January 14, 2025 at 5:40 pm

INSIDER

Re: Re: Re:⁵

Yeah you could totally provide references for all your claims, you just can't be bothered to do so.

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[9]



Anonymous Coward January 16, 2025 at 7:39 am

Re: Re: Re:⁶

You mean this [easily locatable link](#) you clearly couldn't be bothered to look up? And where have you been all your teenage and adult life to *not* know that Al Capone got banged up on charges of tax evasion for lack of sufficient evidence of his other crime.

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Anonymous Coward

January 15, 2025 at 4:05 am

Re: Re: Re:⁵

Does your dad work at Nintendo too?

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Anonymous Coward

January 16, 2025 at 7:12 am

Re: Re: Re:⁴

People found not guilty do not have the prior trial result thrown out.

Of course they don't, that's the DA's job.

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Anonymous Coward

January 14, 2025 at 3:42 am



*And, a **later blood test** did not show any traces of alcohol in his blood.*

What's the betting that he never drinks alcohol was a lie on Vanga's part after he delayed the blood test long enough that it would give a clean result?

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Kinetic Gothic

January 14, 2025 at 6:28 pm

Re:

You know, I keep seeing them pound on the "didn't drink" and "no alcohol"

<https://tvtropes.org/pmwiki/pmwiki.php/Main/SuspiciouslySpecificDenial>

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dickeyrat

January 14, 2025 at 3:47 am

In agreement with earlier poster Glenn, and probably others as well, I also recognize this entire action as *murder* on the part of Kid Vanga, and fully believe he should be vigorously prosecuted for such. It's cases as these, that will never allow me to fully oppose the Death Penalty, no matter how far left I swing otherwise. Some people just need to die; some should be fried alive by the State, and this Vanga piece of shit just happens to be one of those people



Anonymous Coward January 17, 2025 at 7:00 am

Re:

You know what allows me to oppose the death penalty regardless of political position? The idea that the people left behind by the dead person have to live the rest of their lives with the consequences of the perpetrator’s actions, so why shouldn’t the perpetrator do the same? Life without the possibility of parole is a punishment that very much fits the crime, and if evidence is later found that exonerates the person who got locked up for the offence, it’s a hell of a lot easier to release and compensate them if they *haven’t* been given a lethal injection.

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N0083rp00f January 14, 2025 at 5:20 am

...

As a side question, what is the responsibility and ethics of the lawyers who proceeded with sueing the family of the victims?
This is based on knowing full well that their actions fall into - only following orders - level of culpability?

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Anonymous Coward January 14, 2025 at 9:30 am

Re:

What you’re talking about is lawyers that consciously take a person’s money, knowing full well that they won’t have to give it back when they lose the case. Call it greed, or unscrupulous (or both!), but one of the first things a lawyer wanna-be learns in 1L is “the only time you have to give back your fee is when a judge gets mad enough to tell you to do so”. More importantly, the one thing I *never* heard in law school was “pick and choose your battles wisely, because some of them are not worth fighting”.

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Anonymous Coward January 14, 2025 at 5:48 am

Sounds like this Vanga person will try to claim affluenza is to blame for the tragic occurrence.

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Ya Know, being sober when you recklessly cause a car crash that killed people, isn't all that much better than than being drunk when you did so.

It means you were in full possession of your faculties when you decided to speed.

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Anonymous Coward

January 14, 2025 at 6:17 pm

That list of demands is so egregious, the lawyers should do time.

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mick

January 15, 2025 at 9:05 am

Disappointed in Mike here

In a case that seems to defy both law and basic human decency, King Vanga, a Stanford student, got into a car accident that resulted in the deaths of Pamela and Jose Juarez.

“Got into an accident” is NYTimes-level weaseling here. He caused an accident. He negligently smashed into their car at a high rate of speed. He killed them.

There are lots of ways to word the quoted sentence without implying that it was something that happened TO this asshole rather than BY this asshole.

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Lindsey K Farmer

January 16, 2025 at 6:26 am

Still at Stanford

Stanford really didn't do anything...this guy is a graduate student in their engineering program now. I guess being a double murderer and legally harassing the victim's family is the type of student who's a good fit for Stanford.

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